

Our proposed House of Lords amendment

Tap an underlined phrase to read its note. Every note links back.

EXPLANATORY STATEMENT

Includes all members of the UK's four legislatures within the duty of candour and the offence of misleading the public. Safeguards freedom of political expression and debate, parliamentary privilege, and honest mistakes, whilst recognising the democratic voice of legislators, Government Ministers and mayors as part of their public functions.

49 words

Schedule 2, page 53, line 17, at end insert—

EQUAL ACCOUNTABILITY ACROSS UK LEGISLATURES

(14) Subject to sub-paragraph (2), “public official” also includes a member of either House of Parliament, the Scottish Parliament, Senedd Cymru or the Northern Ireland Assembly.

SAFEGUARDING FREEDOM OF POLITICAL EXPRESSION AND DEBATE

(15) Neither section 5 nor section 12 applies to anything said or done in proceedings of any Parliament or legislative assembly in the United Kingdom. Outside those proceedings, a person does not commit either offence merely by making an honest mistake or expressing an honestly held political belief or opinion. Nothing in this paragraph limits the right to freedom of expression under Article 10 of Schedule 1 to the Human Rights Act 1998.

DEMOCRATIC VOICE AS A PUBLIC FUNCTION

(16) For the purposes of sub-paragraph (2) and section 12, a person within sub-paragraph (14), the Mayor of London, a mayor for the area of a combined authority or combined county authority, a Minister of the Crown, a member of the Scottish Government, a junior Scottish Minister, a member of the Welsh Government or a Minister or junior Minister within the meaning of the Northern Ireland Act 1998 is treated as acting in their capacity as a public authority or public official, as applicable, and exercising their public functions when communicating with the public, by any means, about matters of significant concern to the public. Such matters include public policy, national security, public expenditure, the allocation of public assets or resources, legislative or democratic processes, and the environment. Section 12(4) does not apply to that person in respect of such a communication. This sub-paragraph does not apply to communications made in a judicial capacity or concerning solely a person's private life, family life or private business.

PLAIN-ENGLISH READING NOTES

Explanations are reading aids, not part of the amendment.

NOTE 02

Where this amendment goes

This is page 53 of the Lords print. The amendment is inserted at the end of line 17, after sub-paragraph (13), on the gold band, so you can see exactly where it lands.

- (b) the individual is the Mayor of London or the Deputy Mayor of London.
- (12) This sub-paragraph applies if the local authority is a local authority in Scotland and the individual is, in relation to the authority—
- (a) a convener elected in accordance with section 4(1) of the Local Government etc. (Scotland) Act 1994, 5
 - (b) a depute convener elected in accordance with section 4(2) of that Act, or
 - (c) a councillor designated by the authority for purposes relating to the payment of remuneration, in accordance with regulations made under section 11 of the Local Governance (Scotland) Act 2004 (asp 9), as— 10
 - (i) the Leader of the Council,
 - (ii) the Civic Head, or
 - (iii) a senior councillor. 15
- (13) References in Chapters 1 and 3 of Part 2 to a public official include references to an individual who was, but is no longer, such an official.

Equal accountability across UK legislatures

- (14) Subject to sub-paragraph (2), “public official” also includes a member of either House of Parliament, the Scottish Parliament, Senedd Cymru or the Northern Ireland Assembly.

Safeguarding freedom of political expression and debate

- (15) Neither section 5 nor section 12 applies to anything said or done in proceedings of any Parliament or legislative assembly in the United Kingdom. Outside those proceedings, a person does not commit either offence merely by making an honest mistake or expressing an honestly held political belief or opinion. Nothing in this paragraph limits the right to freedom of expression under Article 10 of Schedule 1 to the Human Rights Act 1998.

Democratic voice as a public function

- (16) For the purposes of sub-paragraph (2) and section 12, a person within sub-paragraph (14), the Mayor of London, a mayor for the area of a combined authority or combined county authority, a Minister of the Crown, a member of the Scottish Government, a junior Scottish Minister, a member of the Welsh Government or a Minister or junior Minister within the meaning of the Northern Ireland Act 1998 is treated as acting in their capacity as a public authority or public official, as applicable, and exercising their public functions when communicating with the public, by any means, about matters of significant concern to the public. Such matters include public policy, national security, public expenditure, the allocation of public assets or resources, legislative or democratic processes, and the environment. Section 12(4) does not apply to that person in respect of such a communication. This sub-paragraph does not apply to communications made in a judicial capacity or concerning solely a person's private life, family life or private business.

PART 3

“PUBLIC AUTHORITY” IN CHAPTER 2 OF PART 2

- 4 (1) In Chapter 2 of Part 2, “public authority” means— 20
- (a) a government department,
 - (b) the Scottish Ministers,
 - (c) the Welsh Ministers,
 - (d) a Northern Ireland devolved authority,
 - (e) any of the regular or reserve forces, 25
 - (f) a police force or policing body,
 - (g) a local authority,
 - (h) an NHS body,
 - (i) a school or further education provider, or
 - (j) any other body that meets the condition in sub-paragraph (2) or (3) and is not an excluded body. 30
- (2) A body meets the condition in this sub-paragraph if—
- (a) it is established— 35
 - (i) by virtue of His Majesty’s prerogative,
 - (ii) by an enactment, or
 - (iii) in any other way by a Minister of the Crown, a government department, the Scottish Ministers, the Welsh Ministers or a Northern Ireland devolved authority, and
 - (b) it is wholly or mainly constituted by appointment made by the Crown or by a person mentioned in paragraph (a)(iii). 40

[See the Bill](#)

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NOTE 03

The numbers (14), (15) and (16)

These are three new sub-paragraphs within Schedule 2, paragraph 3, following the existing (13). They are not new clauses or the amendment number Parliament may allocate. A Bill's clauses become sections when it becomes law, which is why the proposed legal text refers to "section 5" and "section 12".

Schedule 2, paragraph 3; amendment drafting convention

[See the Bill](#)

[Drafting guidance](#)

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NOTE 05

All members; either House; legislators

"Legislators" means members of these law-making institutions. Paragraph (14) covers MPs, members of the House of Lords, MSPs, Members of the Senedd and MLAs. It includes peers who are not elected. It adds the members to the relevant definition; the legislatures themselves remain excluded as public authorities.

Proposed (14); Schedule 2, paragraphs 2(4) and 3

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NOTE 07

Section 5: the duty-of-candour offence

This is the offence of failing to comply with the duty of candour and assistance. It requires a failure connected with a covered inquiry or investigation and an intention to impede it; for specified duties, recklessness can also qualify. A simple accidental failure is not enough by itself.

Clause 5(1); the underlying duty is in clause 2

[Read clause 5](#)

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NOTE 08

Section 12: misleading the public

An incorrect statement alone is not enough. Section 12 requires intention or recklessness about misleading the public, significant or repeated dishonesty on a matter of significant public concern, actual or potential harm from the act, and a significant departure from proper functions. The person must know, or ought to know, that the act is seriously improper; a reasonable person must also consider it so in all the circumstances. The Bill's defences remain.

Clause 12(1)-(3), (6)-(8)

[Read clause 12](#)

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NOTE 10

Parliamentary privilege and proceedings

At Westminster, Article IX of the Bill of Rights protects parliamentary speech, debates and proceedings from being questioned in court. This amendment expressly excludes sections 5 and 12 for proceedings in all four legislatures. That includes formal parliamentary work, such as debates and committee evidence; it does not cover everything said anywhere in a Parliament building.

Proposed (15); Bill of Rights, Article IX

[Westminster privilege](#)

[Devolved example: NI](#)

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NOTE 12

Outside parliamentary proceedings

A television interview, public meeting or social-media post is not automatically a parliamentary proceeding because a politician is speaking. Repeating a parliamentary statement outside proceedings is not automatically protected either. Paragraph (15)'s honest-mistake, honest-opinion and freedom-of-expression safeguards remain relevant outside proceedings.

Proposed (15); the distinction between proceedings and other activity

[What counts as proceedings](#)

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NOTE 16

Article 10 and the Human Rights Act 1998

Article 10 protects freedom of expression, including holding opinions and receiving or sharing information and ideas. It is set out in Schedule 1 to the Human Rights Act, which gives the right legal effect in the UK. Restrictions must satisfy Article 10's requirements, including lawful justification, necessity and proportionality.

Human Rights Act 1998, Schedule 1, Article 10(1)-(2)

[Read Article 10](#)

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NOTE 17

Democratic voice as a public function

When the most senior politicians in the country speak to the public, they are not speaking as private individuals. They speak with the title, the status, the staff, the buildings, the public money and the access to national broadcasters that their office gives them. That is the democratic voice, and the public pays for the amplifier.

Scrutinising the executive, questioning public spending, explaining decisions and arguing the issues of the day is what legislators, ministers and mayors are there to do, and they do it in public. That has been the

reality for hundreds of years.

This sub-paragraph puts that reality into law for this Bill. When one of them addresses the public on a matter of significant concern to the public, they are exercising a public function, and the honesty the Bill demands of every other public official applies to them too.

[Proposed \(16\)](#)

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NOTE 18

Public functions

These are the duties and activities belonging to someone's public role. The Bill limits public-official status to those functions. Paragraph (16) expressly makes the listed people's public communications on matters of significant public concern count as exercising public functions, subject to its judicial and purely private exclusions.

Schedule 2, paragraph 3(2); clause 12(3)(c); proposed (16)

[See the Bill's tests](#)

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NOTE 19

Subject to sub-paragraph (2)

This refers to existing Schedule 2, paragraph 3(2), not clause 2. It says someone counts as a public official only to the extent of their functions as that official. Paragraph (14) retains that limit. Paragraph (16) then specifies when the listed people's public communications count as official activity.

Existing Schedule 2, paragraph 3(2)

[Read paragraph 3](#)

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NOTE 20

Public official

This is the Bill's legal category for an individual with a relevant public role. Schedule 2, paragraph 3 defines it. Paragraph (14) expressly adds all members of the four legislatures, subject to the functions limit. It does not make every aspect of their personal lives an official activity.

Schedule 2, paragraph 3; proposed (14)

[Read the definition](#)

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NOTE 30

For the purposes of sub-paragraph (2) and section 12

These words fix where this new rule operates. It applies to section 12, the offence of misleading the public, and to the existing limit on public-official functions in sub-paragraph (2). It does not touch the duty of candour or the section 5 offence, which this sub-paragraph leaves exactly as they are. It settles the capacity and functions questions for qualifying communications; it does not make any communication criminal by itself, or define anyone's role for any other law.

Schedule 2, paragraph 3(2); clause 12; proposed (16)

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NOTE 34

Matters of significant concern to the public

This is one of the ingredients of the misleading the public offence in section 12. The dishonesty has to concern a matter of significant concern to the public, so the offence cannot be used over trivial or purely personal subjects.

The following sentence gives examples. The subject does not have to fall within that politician's own portfolio, and every other requirement of the offence still has to be met.

Proposed (16); clause 12(3)(a)

[Read the offence](#)

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NOTE 35

“Such matters include”

“Include” introduces examples, not a closed list. Public health or public safety, for example, may qualify even though not separately named. Any other subject must still meet the requirement of significant public concern. The judicial and solely private exclusions continue to apply.

Proposed (16), second and final sentences

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NOTE 37

National security

Matters affecting the country's security. This is not only terrorism and war: the United Kingdom's economic security has long been treated as part of the same territory. Section 1(3) of the Security Service Act 1989 gives the Security Service the function of safeguarding “the economic well-being of the United Kingdom against threats posed by the actions or intentions of persons outside the British Islands”.

Naming the subject does not require anyone to disclose protected secrets. The Bill's existing defences remain, including the intelligence and active-service defence and the reasonable-excuse defence.

Proposed (16); clause 12(6)-(7); Security Service Act 1989, section 1(3)

[Read the existing defences](#)

[Security Service Act 1989](#)

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NOTE 42

Section 12(4): the journalism exception

Clause 12(4) otherwise excludes acts done for journalism by a recognised news publisher or someone working for one. Paragraph (16) removes that exception for a qualifying public communication by one of the people it lists.

A legislator, minister or mayor cannot escape it simply because they are also paid by a news organisation, or because they are speaking on a news channel. Their office, their functions and their duty to be honest with the public do not switch off for the hours they are wearing the hat of the BBC, Sky, Channel 4 or any other broadcaster.

Clause 12(4); Online Safety Act 2023, section 56

[The exception](#)

[Recognised news publisher](#)

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NOTE 43

“That person” and “such a communication”

These words tie the removal of the journalism exception to the particular listed legislator, minister or mayor and a communication meeting paragraph (16)’s conditions. They do not remove the exception generally for the publisher or other journalists. The politician’s remaining offence safeguards and defences still apply.

Proposed (16), third sentence

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NOTE 45

Made in a judicial capacity

This means acting as a judge, for example when delivering a judgment. A serving judge can remain a member of the House of Lords while barred from sitting and voting there. These words prevent the new communications rule from applying to judicial work simply because the judge is also a peer.

Proposed (16); Constitutional Reform Act 2005, section 137

[Judges and House membership](#)

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